

Cat Goldstone

Stephen Short <stephen.short@johnstonehvac-ny.com>

Tue 9/22/2020 5:02 PM

To: Ann Maynard <Ann.Maynard@johnstonehvac-ny.com>; Ken Livingston <ken.livingston@johnstonehvac-ny.com>

Ann,

Could you make time tomorrow to talk with Cat and I.

Cat came back from lunch today smelling strongly of alcohol. I became acutely aware of it just before her normal time to leave at 3:30pm and confronted her about it, to which she admitted she'd been drinking and related that it's been a problem for "some time". I told her I was uncomfortable with her driving home (on her motorcycle, no less) and as I was in a Teams meeting with Ken, I asked her to wait until Ken and I had concluded our business so we could talk. She agreed, but then left before Ken and I finished. When I phoned her about it at about 4:30pm, she related that she waited until 4pm and left, "how long did you expect me to wait." She did offer to come back in, but not comfortable putting her back on the road, I asked her to meet tomorrow.

Thanks,

Stephen Short

Branch Manager



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ROCHESTER ▲ SYRACUSE

NYS Contract #PC67222

Group: 39000 Industrial and Commercial Supplies and Equipment

NYS Vendor ID #1000008135

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Employee Warning Notice

This form is used to document instances of misconduct.
The form should be completed by the manager, with the original sent to HR for filing.
A follow up meeting should be scheduled to discuss the notice within two weeks.

Type of warning: ☒ Verbal - 1st Warning ☐ Written – 2nd Warning ☐ Suspension w/o Pay – 3rd Warning
☐ Termination – 4th Warning

Employee name: Cathleen Goldstone

Date of infraction/write-up: 9/23/2020

Have there been previous warnings on this same topic? ☐ Yes, ☒ No ☐ Not Sure

Nature of Infraction:

- | | | |
|--|---|---|
| ☐ Attendance | ☐ Insubordination | ☐ Excessive overtime w/o permission |
| ☐ Tardiness/Early Quit | ☐ Unsatisfactory performance | ☒ Violation of Safety Rules |
| ☐ Inability to stick to schedule | ☐ Attitude affecting morale | ☐ Dishonesty |
| ☐ Unreported/undocumented absence | ☐ Inappropriate behavior with customer or coworker | ☒ Other: Violation of Drug & Alcohol Policy |

Employer Statement-please use the language from the appropriate policy in the employee handbook (to be completed by manager or direct supervisor): Cat's behavior is direct violation of the company's safety rules and the company's Drug & Alcohol Policy as stated in the attachment.

Cat came back from lunch on 22 September smelling strongly of alcohol. I became acutely aware of it just before her normal time to leave at 3:30pm and confronted her about it, to which she admitted she'd been drinking and related that it's been a problem for "some time". I told her I was uncomfortable with her driving home (on her motorcycle, no less) and as I was in a Teams meeting with Ken, I asked her to wait until Ken and I had concluded our business so we could talk. She agreed, but then left before Ken and I finished. When I phoned her about it at about 4:30pm, she related that she waited until 4pm and left, "how long did you expect me to wait." She did offer to come back in, but not comfortable putting her back on the road, I asked her to meet the next day. The following day we talked again. Cat admitted she had been drinking during her lunch breaks for "years" and thought she had hid it well. She promised to stop and related that she didn't need help when offered EAP. I informed her that if she made the choice to drink on lunch then she was not to return to work. She again related that it was no longer going to be a problem.



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Cat is being referred to Lifecare Employee Assistance Program for support and consultation and has been given the contact information. We are asking Cat to call EAP immediately to set up an appointment. We want Cat to inform us of her appointment date.

If Cat refuses to call EAP, she may be subject to further discipline, up to and including termination.

Signature of manager or direct supervisor (person completing form):

Print name: SEPHIA SHAW Title: Branch Manager Date: 24 Sept 20

Employee Statement:

☒ I agree with the statements above.

☐ I disagree with the statements above.

I have read and understand the nature of this warning and further understand that if this activity persists, it will result in further disciplinary action up to and including termination.

Employee's signature: [Signature] Date: 9.24.20

☐ I refuse to sign. Initial: _____

Witness Statement:

The above warning has been explained to this employee and he/she understands its seriousness.

Signature of witness: [Signature]

Print witness name: Ann F Maynard Title: Hr Date: 9/24/2020



Drug and Alcohol Policy

Johnstone Supply of Central NY is committed to providing a safe, healthy, and productive work environment. Consistent with this commitment, it is the intent of Company to maintain a drug and alcohol-free workplace. Being under the influence of alcohol or illegal drugs (as classified under federal, state, or local laws), including marijuana, while on the job may pose a serious health and safety risk to others, which will not be tolerated.

Prohibited Conduct

The Company expressly prohibits employees from engaging in the following activities when they are on duty or conducting Company business or on Company premises (whether or not they are working):

- The use, abuse, or being under the influence of alcohol, illegal drugs, or other impairing substances.
- The possession, sale, purchase, transfer, or transit of any illegal or unauthorized drug, including prescription medication that is not prescribed to the individual, or drug-related paraphernalia.
- The illegal use or abuse of prescription drugs.

While the use of marijuana has been legalized under some state laws for medicinal [and/or recreational] uses, it remains an illegal drug under federal law and its use, as it impacts the workplace, is prohibited by Company policy. The Company does not discriminate against employees solely on the basis of their off-duty use of medical marijuana in compliance with medical marijuana laws. You may not consume or be under the influence of marijuana while on duty or at work, even if you have a valid prescription for medical marijuana.

Nothing in this policy is meant to prohibit your appropriate use of over-the-counter medication or other medication that can legally be prescribed under both federal and state law, if it does not impair your job performance or safety or the safety of others. If you take over-the-counter medication or other medication that can legally be prescribed under both federal and state law to treat a disability, inform your manager if you believe the medication may impair your job performance, safety, or the safety of others or if you believe you need a reasonable accommodation before reporting to work while under the influence of that medication.

Employer-Sponsored Events

From time to time, the Company may sponsor social or business-related events where alcohol may be served. This policy does not prohibit the use or consumption of alcohol at these events. However, if you choose to consume alcohol at such events, you must do so responsibly and maintain your obligation to conduct yourself properly and professionally at all times.

Treatment and/or Rehabilitation

The Company may assist you in seeking treatment or rehabilitation for drug or alcohol



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dependency. In such cases, the Company may consider your continued employment as long as concerns regarding safety, health, production, communication, or other work-related matters are adequately addressed. The Company may also require you to obtain a medical clearance and agree to random testing and a "one- strike" rule as a condition of continued employment.

Violations

A violation of this policy may result in disciplinary action, up to and including termination of employment.

Signature

9.24.20

Date

CAT GOLDSTONE

Print Name

LifeCare Work-Life EAP Program

Visit Lifecare.com or call a Specialist today at **1-855-268-1006** for confidential 24/7 assistance and resources for childcare, elder caregiving, emotional health counseling, substance abuse, wellness resources, pet services, home services, legal and financial services and more. Please give the Specialist our Company Code H1J and state that we are an ADP customer.

Emotional Health and Counseling

Call today for your choice of 3 face-to-face or over-the-phone counseling sessions per issue with unlimited issues per year.

- Anxiety & Depression
- Divorce & Family counseling
- Domestic violence
- Marital or relationship difficulties
- Discounts, articles, and tools on LifeCare.com
- Grief issues
- Substance abuse



Parenting, Child Care and Education

Balancing work, family and all your daily responsibilities can be challenging.

LifeCare offers personalized assistance and resources to help you save time and

- Adoption and Prenatal Care
- Child Development and Special Needs
- Childcare (centers, in-home, family day care)
- Breastfeeding and Mothers at Work® Education
- Discounts, articles, and tools on LifeCare.com Before
- Parenting infants to



Senior Caregiving Services

Caring for loved ones as they age is a lot easier when you have a good support system in place.

- Care options and living arrangements
- Medicare, Medicaid, and Social Security
- Caregiver issues and concerns
- Senior health/safety
- Home meal delivery programs
- Transportation services



Wellness and Daily Living

- Family health
- Safety
- Moving/relocation
- Diet & nutrition
- Consumer information
- Travel
- Emotional health
- Pet care
- Utilities/home services
- Fitness/exercise
- Automotive services
- Discounts, articles and tools on



Legal and Financial

Call to learn more - you may be eligible for free consultations and discounted legal fees.

- Credit & debt
- Medicare/Medicaid
- Social Security
- Insurance
- Real estate & loans
- Discounts, articles and tools on LifeCare.com
- Legal & Personal finance
- Retirement planning

